

SOTOMAYOR, J., dissenting

Delegate Charles Pinckney later explained that “[t]he Convention which formed the Constitution well knew” that “no subject had been more abused than privilege,” and so it “determined to . . . limi[t] privilege to what was necessary, and no more.” 3 *id.*, at 385. “No privilege . . . was intended for [the] Executive.” *Ibid.*²

Other commentators around the time of the founding observed that federal officials had no immunity from prosecution, drawing no exception for the President. James Wilson recognized that federal officers who use their official powers to commit crimes “may be tried by their country; and if their criminality is established, the law will punish. A grand jury may present, a petty jury may convict, and the judges will pronounce the punishment.” 2 *Debates on the Constitution* 477 (J. Elliot ed. 1836). A few decades later, Justice Story evinced the same understanding. He explained that, when a federal official commits a crime in office, “it is indispensable, that provision should be made, that the common tribunals of justice should be at liberty to entertain jurisdiction of the offence, for the purpose of inflicting the common punishment applicable to unofficial offenders.” 2 *Commentaries on the Constitution of the United States* § 780, pp. 250–251 (1833). Without a criminal trial, he explained, “the grossest official offenders might escape without any substantial punishment, even for crimes, which would subject their fellow citizens to capital punishment.” *Id.*, at 251.

This historical evidence reinforces that, from the very beginning, the presumption in this Nation has always been that

²To note, as the majority does, see *ante*, at 639, that this Court has recognized civil immunities arguably inconsistent with this view is not to say that Pinckney was wrong about what the Framers had “intended.” Indeed, Pinckney’s contemporaries shared the same view during the ratification debates. See, e.g., 4 *Debates on the Constitution* 109 (J. Elliot ed. 1836) (J. Iredell) (“If the President does a single act by which the people are prejudiced, he is punishable himself. . . . If he commits any crime, he is punishable by the laws of his country”).